IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-1

CA-(CAA)-58/230- 232/ND/2023

IN THE MATTER OF:

Help-Line Securities Pvt. Ltd. With Antarctica Finvest Pvt. Ltd. **....Applicant**

SECTION

U/s 230-232 **Order delivered on 22.08.2023**

CORAM:

SHRI MAHENDRA KHANDELWAL,
HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

Order pronounced in open Court vide separate sheets. CA-(CAA)-58/230- 232/ND/2023 stands **allowed.**

Sd/-
(RAHUL BHATNAGAR)
MEMBER (T)

Sd/-
(MAHENDRA KHANDELWAL)
MEMBER (J)

BEFORE THE NATIONAL COMPANY LAW TRIBUNAL

COURT NO. V, NEW DELHI

CA (CAA) No. - 58/(ND)/2023

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

IN THE MATTER OF SCHEME OF AMALGAMATION

OF

HELP-LINE SECURITIES PRIVATE LIMITED
(Applicant Company/Transferor Company)

AND

ANTARCTICA FINVEST PRIVATE LIMITED
(Non-Applicant Company/Transferee Company)

Order Delivered on: 22.08.2023

CORAM:

SHRI MAHENDRA KHANDELWAL, HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR, HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

HELP-LINE SECURITIES PRIVATE LIMITED

Registered Office at: 2/16, Ground Floor, Ansari Road, Gali No. 2, Daryaganj, Behind Vijaya Bank, New Delhi-110002

...Transferor Company/Applicant Company

ANTARCTICA FINVEST PRIVATE LIMITED

Registered office at: 19, Civil Lines, Shahjahanpur Road, Bareilly-243001, Uttar Pradesh **...Transferee Company/Non-Applicant Company**

PRESENT:

For the Applicant: Mr. Kartikeya Goel, Adv.

For the Respondent:

O R D E R

PER: MAHENDRA KHANDELWAL, HON'BLE MEMBER (JUDICIAL)

1. This is a joint application filed by the applicant company herein, **Help-Line Securities Private Limited** (for brevity "Transferor Company") and non-applicant company herein, **Antarctica Finvest Private Limited** (for brevity "Transferee Company") under Section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement in the nature of amalgamation (hereinafter referred to as the "SCHEME") proposed between the applicant and the non-applicant.

2. The Applicant Company/Transferor Company, Help-Line Securities Private Limited (CIN- U67120DL1996PTC080343) was incorporated under the provisions of the Companies Act, 1956, as a private limited company vide Certificate of Incorporation dated 12.07.1996 having its registered office at 2/16, Ground Floor, Ansari Road, Gali No. 2, Daryaganj, Behind Vijaya Bank, New Delhi-110002. The present Authorized Share Capital of the Transferor Company is Rs. 5,00,00,000/- divided into 50,00,000 Equity Shares of Rs. 10/- each. The present issued, subscribed and paid-up share capital of the

Applicant Company/Transferor Company is Rs. 54,80,000/- divided into 5,48,000 Equity Shares of Rs. 10/- each. The Applicant Company /Transferor Company, vide their meeting of the Board of Directors held on 09.05.2023 have unanimously approved the proposed Scheme of Amalgamation as contemplated above. Copies of said resolutions passed in the said board meetings have been placed on record. Affidavit in support of the above application sworn by Mr. Tanmay Maheshwari being the authorized signatory of the Applicant Company, who has been authorized vide Board Resolution dated 09.05.2023 for the Transferor Company was duly filed, along with the application. It was also represented that the registered office of the Applicant Company is under the domain of Registrar of Companies, NCT of New Delhi & Haryana and therefore within the territorial jurisdiction of this Tribunal.

3. The Non-Applicant Company/Transferee Company, Antarctica Finvest Private Limited is a private limited company incorporated under the provisions of Companies Act, 1956, vide Certificate of Incorporation dated 20.11.1995 (CIN-U70109UP1995PTC159122) with Registrar of Companies, NCT of Delhi & Haryana and having its registered office at 19, Civil Lines, Shahjahanpur Road, Bareilly-243001, Uttar Pradesh. The present Authorized Share Capital of the Transferee Company is Rs. 2,00,00,000/- divided into 2,00,000 Equity shares of Rs. 100/- each. The present issued, subscribed and paid-up share capital of the Non-Applicant Company/Transferee Company is Rs. 79,31,800/- divided into 79,318 Equity Shares of Rs.100/- each. The Non-Applicant Company/Transferee Company, vide their meeting of the Board of Directors held on 09.05.2023 have unanimously approved the proposed Scheme of Amalgamation as contemplated above. Copies of said resolutions passed in the said board meetings have been placed on record. Since the registered office of the Non-Applicant Company is not under the domain of

Registrar of Companies, NCT of New Delhi & Haryana and therefore, not within the territorial jurisdiction of this Tribunal.

4. The Transferor Company as well as the Transferee Company have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses, as well as their last Audited Annual Accounts for the Financial Year 31.03.2022.

5. It has been stated that the Applicant Company/Transferor Company has 2 Equity Shareholders. The list of shareholders was annexed and all of them have given their respective consents by way of affidavits which were annexed to the application. It was further represented that the Applicant Company has nil Secured Creditor and 1 Unsecured Creditor. Certificate from Chartered Accountants certifying that the Transferor Company has nil Secured Creditor and 1 Unsecured Creditor was annexed thereto. The sole Unsecured Creditor of the Transferor Company has given its consent by way of affidavit which was annexed to the application. The Applicant Company seeks to dispense with the meetings of its Equity Shareholders and Unsecured Creditors in view of the consent affidavit placed by them. Since the Company has nil Secured Creditor, therefore the necessity of convening/holding a meeting does not arise. It has been stated that the Non-Applicant Company/Transferee Company has 4 Equity Shareholders. The list of said shareholders was annexed. However, it is outside the jurisdiction of this Tribunal to deal with the Non-Applicant Company.

6. The appointed date as specified in the Scheme is 01.04.2023 or such other date as prescribed by this Tribunal.

7. The Applicant Company confirmed that the provisions relating to the accounting treatment for the proposed merger, as contained in the Scheme,

were in conformity with the applicable provisions of the Companies Act, 2013. Certificates from respective Statutory Auditors of the Applicant and Non-Applicant Company on the accounting treatment, as proposed in the Scheme, were annexed to the application and it is clearly stated that the Accounting treatment is in conformity with the applicable prescribed under Section 133 of Companies Act, 2013.

8. The Applicant Company have stated that no proceedings for inspection, inquiry or investigation under the provisions of the Companies Act, 2013, or under the provisions of the Companies Act, 1956, or under any other law were pending against both the Applicant and the Non-Applicant Company.

9. Taking into consideration the submissions and the documents filed therewith, the following directions are issued with respect to convening/holding or dispensing with the meetings of the Shareholders, Secured and Unsecured Creditors as well as issue of notices including by way of paper publication as follows:

In relation to the Applicant Company/Transferor Company:

a) **With respect to Equity shareholders:** In view of consent affidavits from 2 equity shareholders, having 100% voting share, been filed, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors:** There are nil Secured Creditor, therefore the necessity of convening a meeting does not arise.

c) **With respect to Unsecured Creditors:** In view of consent affidavit from 1 Unsecured Creditor, having 100% voting share, been filed, convening the meeting of shareholders/members is dispensed with

10. Notice of this application shall be served on the following:

i. Regional Director, Ministry of Corporate Affairs, B-2 Wing, 2 Floor, Paryawaran Bhavan, CGO Complex, New Delhi-110003;

ii. Registrar of Companies at 4th floor, IFCI Tower, 61, Nehru Place, New Delhi-110019;

iii. The Official Liquidator, Lok Nayak Bhavan, 8th Floor, Khan Market, New Delhi-110001;

iv. Income Tax Department, Income Tax Office, Additional Commissioner of Income Tax, Special Range 4, Central Revenue Building, IP Estate, New Delhi-110002. The notices to Income Tax Authorities shall disclose sufficient details like PAN, ward numbers and assessing officers so that timely and proper reply may be filed.

v. Any other sectoral regulators required to be served.

The application stands allowed on the aforesaid term and disposed of.

Sd/-
(RAHUL BHATNAGAR)
MEMBER (TECHNICAL)

Sd/-
(MAHENDRA KHANDELWAL)
MEMBER (JUDICIAL)